

Plaintiff's release from custody, but is informed he is serving an indeterminate term.

This case was originally filed July 23, 2018. The Remittitur was issued by the Appellate Court on November 11, 2021, and this Court has been undertaking the above summarized efforts ever since. Specifically, the Court has undertaken 14 substantive hearings since the remittitur in an effort to assist the Defendant in obtaining legal representation and that he could retain an expert to assist him with his response to the Motion for Summary Judgement, all in an effort to comport the Appellate opinion. Also, the OSC placing the MSJ back on calendar was heard on November 12, 2024. By hearing the MSJ on today's date, the Court "re-started" the clock insofar as the notice period for these motions as set forth in the CCP. In doing so, the Court the Court notes 83 days between OSC hearing and MSJ hearing on today's date, Feb. 3.

This Court finds it has undertaken the extensive efforts contemplated by the Appellate Court to assure Plaintiff's access to justice. Indeed, many of these efforts are not available to non-incarcerated self-represented litigants. The Court also finds it has exhausted reasonable efforts to provide the Plaintiff with ample opportunity to procure counsel and/or medical experts. Mindful of the rights of all parties to timely resolution of claims and the Court's duty to timely resolve litigation consistent with codified case disposition standards, the Court finds it is appropriate to now resume proceedings on the Plaintiff's Motion for Summary Judgement. In its November 12, 2024 Order, the Court specified that it would consider the original papers, and also would consider any supplemental briefing. Plaintiff's brief was due by close of business on January 24, 2025. Defendant's brief was due by close of business on January 29, 2025.

On January 24, 2025, the Defendant filed a Request to Change the Hearing Date on this motion, due to a lockdown in the Prison where he is currently housed. In the interest of maintaining the Defendant's access to justice, especially as directed by the Appellate Court, this Court will grant this request and hereby re-sets the hearing of this matter to **March 17, 2025 at 8:30 a.m. in Department 64. Plaintiff's further briefing, if any, must be filed and served no later than March 7, 2025; Defendant's further briefing, if any, must be filed and served no later than March 12, 2025. No appearance is required on today's calendar.**

LAKEVIEW LOAN SERVICING, LLC VS. FIRSTPLUS FINANCIAL, INC., ET AL.

Case Number: 24CV-0204251

Ruling on Ex Parte Application for Order Authorizing Service on Secretary of State: In this action, filed February 8, 2024, Plaintiff has filed the instant ex parte application to serve Defendant Firstplus Financial, Inc. by means of substitute service on the California Secretary of State. Plaintiff alleges Defendant Cody Cournoyer purchased certain real property from Melanie Shockley on February 5, 2021. To effectuate this purchase, Defendant obtained a loan for \$245,373.00 which was secured by a first deed of trust on the real property. The note and deed of trust were eventually acquired by Plaintiff. After Defendant, Cournoyer, defaulted in the payment of this loan, Plaintiff began a non-judicial foreclosure. In the course of this foreclosure process, Plaintiff discovered a previously recorded lien (deed of trust) on the real property in the amount of \$18,258.94. Plaintiff contends it did not previously know of this lien and that it is informed and believes that this lien was previously satisfied and that the deed of trust evidencing this lien should have been extinguished by the filing of a reconveyance. The various causes of action in Plaintiff's complaint are intended to extinguish this prior lien.

One of the named parties in the Plaintiffs complaint is Firstplus Financial, Inc., the named beneficiary in the previously recorded deed of trust. Plaintiff had previously served this entity by substitute service, on CT Corporation System, claiming this was the agent for service of process for Firstplus Financial, Inc. here in California. Plaintiff admits it has now learned that this entity is actually *not* the designated agent of First Plus Financial, Inc. **Therefore, based on the Court's own motion, and with the acquiescence of the Plaintiff, the Default of Firstplus Financial, Inc., filed May 9, 2024, is hereby vacated.** Based upon Corporations Code § 17701.16(c), and the Plaintiff's filed declarations detailing efforts to serve Firstplus Financial, Inc., the Court finds good cause to GRANT Plaintiff's ex parte application to allow substitute service on the Secretary of State as to this named defendant. Plaintiff has filed a proposed order which will be executed.

Based on the foregoing, the Court hereby continues today's Review Hearing to **Monday, May 5, 2025 at 9:00 a.m. in Department 64** for status of service and/or defaults on all parties. No appearance is necessary on today's calendar.

IN RE NOEL

Case Number: 24PB-0032752

Tentative Ruling on Petition to Approve Minor Compromise: This matter is on calendar for hearing on a Petition for Approval of Compromise of Claim. Petitioner is Gabriell Marie Noel, the mother of minor Nilsa Louise Noel. Probate Code § 3500 permits a parent to settle a claim for a minor so long as the claim is not against the parent and the petitioner is (1) Either parent if the parents of the minor are not living separate and apart or (2) The parent having the care, custody, or control of the minor if the parents of the minor are living separate and apart. It appears that the mother would qualify as the petitioner under at least option 2, however, the Court will inquire at the hearing.

California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Therefore, hearing on the petition is required before approval. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will direct Counsel to voir dire Petitioner regarding the following: the authority to act under Prob. Code § 3500(a); the terms of the settlement; and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of filing a verified copy of the annuity contract. **An appearance by the Petitioner and the minor is necessary on today's calendar.**

IN RE: OAKES

Case Number: 24CV-0206142

Tentative Ruling on Petition for Change of Name: Petitioners Aubry Oakes and Rebekah Oakes seek a name change for their minor daughter. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.